

A Novel Fact for Concentration by Subtraction: The San Luis Blank-Resignation Convictions and a Broader Reading of Article 22 bis

Ignacio Adrián Lerer
Independent Researcher
Buenos Aires, Argentina
Email: adrian@lerer.com.ar

Abstract

The companion paper "Concentration Without Reception" proposed Article 22 bis, a function-defined nullity rule voiding any instrument that subordinates continuation in an elective public office to a third party's will, grounded in the government of Misiones province, Argentina. The rule's scope, elective public office, left open whether the identical mechanism, deployed against an appointed office carrying constitutional independence guarantees, would fall outside its reach.

This paper tests that question against a case not used in constructing the original theory: the criminal prosecution of two San Luis provincial officials for conditioning judicial appointments on candidates signing blank resignations between 2004 and 2005, a case the Supreme Court of Argentina left finally decided on November 29, 2025*.

Using Lakatos's account of novel facts, the paper treats the San Luis proceedings as independent corroboration of concentration by subtraction, discovered rather than designed as a test. It finds that Argentine criminal law reached the coercive use of one such instrument against a single judge but acquitted the same officials of the systemic practice of collecting resignations from at least ten other candidates, confirming the specific gap Article 22 bis was built to close.

It further finds that Article 22 of the National Constitution protects not only "representantes" but "autoridades creadas por esta Constitución," a category broad enough to reach appointed judicial offices, and that the original Article 22 bis undertheorized its own textual source.

The paper revises Article 22 bis accordingly, while explicitly declining to extend its vote-imputation mechanism to judicial rulings, for reasons distinct from those that justify the extension for legislative votes.

Keywords: extended phenotype theory, evolutionary game theory, judicial independence, blank resignation, Article 22, San Luis, novel facts, Lakatos

JEL codes: K10, K40, K41, D72, D02

1. Introduction

On November 29, 2025, the Supreme Court of Argentina left firm a six-year prison sentence against two former San Luis provincial officials, closing a criminal case that had taken twenty

* Status: working paper, version 0.1. This is the second companion piece to "Concentration Without Reception" (Lerer, 2026a, Zenodo, DOI 10.5281/zenodo.21711303), itself a companion to "The Captured Renewer Problem" (Lerer, 2026b, Zenodo, DOI 10.5281/zenodo.21459029). This draft is not citation-final. The San Luis chronology in Section 3 is sourced entirely to press coverage of the criminal proceedings; this paper's research did not retrieve the Tribunal Oral, Casación, or Corte Suprema decisions directly, and Appendix A identifies the specific claims that should be checked against the court's own record before this paper is treated as citation-final. The background references to Formosa and Santiago del Estero in Section 2.3 are similarly press-sourced and are offered as context, not as independently verified holdings.

years to reach a final judgment. Sergio Freixes and Mario Zavala, respectively the minister and vice-minister of legalidad under Governor Alberto Rodríguez Saá's first administration, had conditioned appointment to the San Luis provincial judiciary on candidates signing an undated resignation letter, held by the ministry and activated against any judge who acted against the executive's interests. At least eleven magistrates are known to have signed one; the conviction covers what happened to one of them, Marina Ziliotto, who refused an order to denounce colleagues critical of the government and was removed using her own signature.

This paper was not built to explain San Luis. It was built to explain Misiones, a legislature chaired for sixteen years by a man who held no office larger than a single seat, using a mechanism, the anticipated or blank resignation, theorized in the companion paper to this one as concentration by subtraction, the structural mirror image of the *suma del poder público* that Article 29 of the National Constitution was written to prevent (Lerer, 2026a). That paper proposed Article 22 bis, a function-defined rule voiding any instrument that makes an elected official's tenure conditional on a private will. San Luis supplies what Misiones could not: a criminally adjudicated instance of the identical mechanism, independently confirmed by Argentina's ordinary courts over two decades, deployed not against a legislature but against a judiciary, and not against elective offices but against appointed ones.

This is what Lakatos (1978) calls a novel fact: a fact not used in constructing a theory that the theory nonetheless accounts for. The San Luis proceedings predate this research programme's account of concentration by subtraction by roughly twenty years and were located, not designed, as a test. This paper asks what that fact demonstrates about the reach of Article 22 bis as originally drafted, and argues that the honest answer requires rereading the constitutional text the rule was built to serve, not inventing a new one.

2. Theoretical Framework

Epistemological positioning. This paper continues the research programme of its companion pieces (Lerer, 2026a, 2026b), applying Generalized Darwinism and Extended Phenotype Theory to legal and institutional systems. Its specific contribution is methodological in the Lakatosian sense: Popper (1959) treats a theory's ability to accommodate facts discovered independently of its construction as stronger corroboration than facts selected to fit it, and Lakatos (1978) formalizes the same intuition as the requirement that a progressive research programme predict, or at minimum successfully absorb, novel facts rather than merely rationalize known ones. Section 3 argues that San Luis satisfies this requirement: nothing in the construction of concentration by subtraction as a theory drew on the San Luis proceedings, and the theory nonetheless supplies the vocabulary the facts need.

2.1 Concentration by subtraction, briefly restated

The companion paper defines concentration by subtraction as the structural mirror image of concentration by accumulation: instead of one actor's own formal powers increasing through a grant, every other actor's practical independence decreases through a private instrument that

never has to be exercised to constrain behavior (Lerer, 2026a, Section 2.2). Article 29 CN and its comparative analogues regulate accumulation; none regulates subtraction, because none is drafted around what a non-office-holder can withhold from others rather than what an office-holder receives. Article 22 bis was proposed to close that gap for one category of office, elected representatives, using the Misiones legislature as its empirical anchor.

2.2 Why appointed, tenure-protected offices are a harder case

Elected offices carry a structural feature that appointed, tenure-protected offices, by constitutional design, do not: periodic renewal. Section 3.3 of the companion paper showed the Argentine Supreme Court willing to read Article 5 CN's republican guarantee functionally against provincial reelection schemes in San Juan (2023), and this paper's research now suggests that case sits within a longer line running through Santiago del Estero (2013) and, most recently, Formosa (2024), where the Court unanimously struck down Governor Gildo Insfrán's constitutional basis for an eighth consecutive term, citing San Juan directly (Infobae, December 19, 2024; see Appendix A on sourcing). Each of those cases eventually reaches a court because an election is coming, a candidacy has to be registered, and someone has standing to challenge it before the vote. A judge protected by tenure "mientras dure su buena conducta" has no analogous checkpoint. Nothing forces the question the way an upcoming election forces it. San Luis took twenty years to produce a final judgment, and it did so only because a fiscal filed a criminal complaint, not because any electoral calendar forced the issue.

3. The Case: San Luis, 2004-2025

3.1 Design: the 2004 reform and the Ministerio de Legalidad

In 2004, during the first governorship of Alberto Rodríguez Saá (2003-2011), a reform to San Luis's Ley Orgánica de Administración Judicial placed the process for selecting provincial judges under a Ministerio de Legalidad headed by Sergio Freixes, with Mario Zavala as vice-minister. From that position, according to the criminal complaint later filed by fiscal Gretel Diamante of Villa Mercedes, the ministry conditioned every judicial appointment on the candidate signing an undated resignation letter, left at the ministry's disposal, to be activated at its discretion (Poder Ciudadano, 2020; Infobae, August 27, 2023).

3.2 Operation: at least eleven magistrates, one retaliation

At least eleven candidates for the provincial judiciary are documented to have signed the instrument, according to Diamante's complaint (La Nación, February 12, 2021). One of them, Marina Ziliotto, then a camarista in the fuero penal, was called some months after her appointment and instructed to denounce two fellow appeals judges known to be critical of the provincial executive. She refused. The ministry activated her signed resignation and removed her from the bench (Infobae, August 27, 2023). In 2005 the matter reached the National Senate, whose committee reviewing a possible federal intervention of the San Luis judiciary was

chaired by then-senator Cristina Fernández de Kirchner; Ziliotto testified there, corroborating Diamante's complaint (Diario Judicial, October 8, 2018). No intervention followed.

3.3 Adjudication: twenty years, and a crucial partial acquittal

The criminal case against Freixes and Zavala moved slowly. A Tribunal Oral en lo Criminal Federal de San Luis eventually convicted both to six years in prison for coacción agravada, but the conviction covered only the two acts committed against Ziliotto: the demand that she denounce her colleagues and the retaliatory execution of her resignation. On the broader charge, that conditioning appointment on a blank resignation for the other candidates was itself criminal, the tribunal acquitted, finding the general practice not penally típica (La Nación, February 12, 2021). The Cámara Federal de Casación Penal confirmed the six-year sentences in 2023 (Infobae, August 27, 2023), and the Supreme Court of Argentina left the conviction firm on November 29, 2025, ordering the defendants detained (La Nación, November 29, 2025; Fiscales.gob.ar, December 10, 2025).

4. What Criminal Law Reaches, and What It Leaves Open

The acquittal on the systemic charge is this paper's central doctrinal finding, and it maps with unusual precision onto the distinction the companion paper draws between reception-based and subtraction-based design (Lerer, 2026a, Section 2.2). Argentine criminal law, through the offense of coacción agravada, reaches the moment an instrument is used to compel or punish a specific act: the demand that Ziliotto denounce her colleagues, her removal for refusing. It does not reach the moment the instrument is created and held, when ten or more other judges took the bench knowing an undated resignation sat in a ministry drawer, because holding a threat is not, without more, a criminal act under the doctrine the San Luis tribunal applied. This is not a defect in Argentine criminal law generally; it follows from the ordinary requirement that criminal liability attach to conduct, not to a state of affairs. But it means that for exactly as long as an instrument goes unused, the officials who hold it, and the judges who signed it, exist in a zone criminal law does not reach at all. That zone is what Article 22 bis was built to close, not by punishing the instrument's use after the fact, but by voiding the instrument itself, at the moment of its creation, regardless of whether it is ever activated.

5. Rereading Article 22: "Representantes y Autoridades"

5.1 The textual gap in the original Article 22 bis

Article 22 bis, as proposed in the companion paper, voids any instrument that "subordinates access to an elective public office, or continuation in its exercise" (Lerer, 2026a, Section 6.1). San Luis's judges are not elected; they are appointed. Read literally, the original clause does not reach the San Luis mechanism at all, even though Section 4 has just shown the mechanism to be functionally identical to the one Article 22 bis was designed to void.

5.2 What Article 22 itself already says

The gap is not in Article 22 of the National Constitution. It is in how narrowly the companion paper drew from it. Article 22 CN reads: "El pueblo no delibera ni gobierna, sino por medio de sus representantes y autoridades creadas por esta Constitución." The clause names two categories, not one: representantes, elected representatives, and autoridades creadas por esta Constitución, authorities the Constitution creates, a category that reaches appointed judges as naturally as it reaches elected legislators. The principle Article 22 CN states, that public power is exercised only through channels the Constitution itself establishes, and not through any private will substituting for them, was never limited to elected office. The companion paper's Article 22 bis simply undertheorized its own source.

5.3 Revised Article 22 bis

Article 22 bis (revised). Any instrument, whatever its denomination or the identity of the person in whose custody it is held, that subordinates access to a public office or authority created by this Constitution, whether filled by election or by appointment, or continuation in its exercise, to the will of a third party other than the constitutionally prescribed source of that office-holder's authority, the electorate for elective offices, the appointing body acting through its prescribed procedure for appointed offices, or the office-holder personally, is void of absolute nullity. This nullity reaches, without limitation, anticipated, blank, or undated resignations, and any other commitment, whatever its form, that produces the same effect in practice. The nullity operates by force of law and may be invoked by the office-holder, by any elector of the relevant district, by any party with a direct interest in the office's independent exercise, or by the competent electoral or judicial administration authority acting on its own initiative.

For purposes of determining whether a law, resolution, or appointment obtained the majority the Constitution or the applicable rules of procedure require, the vote of a legislator whose tenure is judicially shown to have been conditioned by an instrument void under this article is imputed not to that legislator but to whoever is shown to hold or exercise custody of the instrument, and is excluded from the legislator's own tally for that specific measure. A law, resolution, or appointment that retains the required majority once that vote is excluded remains valid and is not affected by this article. One that does not may be challenged on that specific ground alone, without affecting rights acquired in good faith under any other measure.

A judicial declaration under this article produces the vacancy of the affected office under the same terms applicable to any other cause of removal, without retroactive effect on the office-holder's prior acts except as provided in the preceding paragraph.

Whoever holds or exercises, directly or through an intermediary, an instrument void under this article is personally liable, jointly and severally and without limitation, for the damages its use causes to the office-holder, to the electorate, or to third parties, without prejudice to any criminal liability that may separately apply. This liability does not extend to the office-holder whose tenure was conditioned by the instrument.

The remaining paragraphs of the companion paper's design, the vacancy consequence and the personal-liability layer modeled on Article 54 in fine of Ley General de Sociedades 19.550 (Lerer, 2026a, Section 6.1), extend to appointed offices without modification: whoever holds or exercises the instrument remains personally liable, jointly and severally and without limitation, and the affected office falls vacant prospectively, without disturbing the office-holder's own prior acts.

5.4 Why the vote-imputation mechanism does not extend to judicial rulings

One paragraph of the original design does not travel to the judicial context, and this paper states that as a limitation rather than papering over it. The companion paper's vote-imputation

mechanism recalculates whether a law or resolution retained its required majority once a conditioned legislator's vote is excluded (Lerer, 2026a, Section 6.1). A legislative majority is a countable, procedural fact; recalculating it disturbs no one's reliance beyond the specific measure in question. A judicial ruling is not the same kind of fact. Extending the same logic to a judge's decisions, treating any ruling issued while an undated resignation sat unexercised as presumptively suspect and subject to recalculation, would unsettle final judgments relied upon by parties who had no part in, and no way to detect, the coercion, on a standard, the mere existence of an unexercised threat, weaker than the standard Argentine procedural law already applies to reopen a final judgment for fraud or coercion specific to that judgment. This paper does not propose disturbing final rulings on the basis of Article 22 bis alone. A litigant who can show a specific ruling was itself coerced retains the ordinary remedies procedural law already provides; Article 22 bis's contribution here is prospective, voiding the instrument and freeing the judge's future rulings from the threat, not retrospective review of the past ones.

This limitation is deliberate economy of drafting, not an oversight: Article 22 bis's own text, consistent with the preference for spare constitutional language, does not state it. Anyone citing, reproducing, or adapting Article 22 bis apart from this paper, in a bill, a judicial brief, or a later working paper, should treat the boundary drawn in this section as attached to the clause, and should restate it expressly in that context rather than assume the clause is self-explanatory.

6. Objections and Responses

This just restates Article 110 CN, which already protects federal judges. Article 110 CN protects federal judges by its own text; San Luis's judges are provincial, and Article 110's literal reach stops at "los tribunales inferiores de la Nación." Provincial judicial independence rests instead on the structural requirement of Article 5 CN that each province "asegure su administración de justicia," read, as this paper reads it, in light of the same principle Article 110 CN expresses for the national judiciary and Article 22 CN expresses for representative government generally: that authority the Constitution creates should answer to the process that created it, not to a private will. Article 22 bis does not duplicate Article 110; it fills the gap Article 110's own textual limitation leaves open for provincial courts.

Extending Article 22 bis to appointed offices sweeps too broadly, covering every civil servant a superior can pressure. The clause is limited by its own terms to offices and authorities created by the Constitution, the judiciary, electoral authorities, comptrollers, and analogous bodies whose independence the constitutional order itself guarantees, not the ordinary hierarchical relationships of the civil service, where a superior's authority over a subordinate is precisely what the position contemplates. An ordinary employment relationship is not a constitutional authority; a tenured judge is.

The San Luis officials were already punished; what more does a civil rule add? Section 4 answered this directly: the officials were punished for the specific act against Ziliotto, not for

the underlying policy that put ten other judges in the same position without their case ever being tested. A rule that only punishes activation, and only after the fact, leaves every judge who has signed such an instrument and never had it used against them entirely unprotected for as long as the instrument exists.

7. Limitations and Falsifiable Predictions

This paper's central claim, that Article 22 CN's textual reference to "autoridades creadas por esta Constitución" supports extending Article 22 bis to appointed offices, is an interpretive argument, not a holding any court has issued; this paper's research found no Argentine case applying Article 22 CN's "autoridades" language to an appointed-office independence question of this kind, and Appendix A flags the point accordingly. The distinction drawn in Section 5.4, between voiding an instrument prospectively and disturbing a specific ruling retrospectively, follows from general principles of finality in Argentine procedural law rather than from a case testing this exact scenario; a court that treated a judge's rulings issued under an unexercised threat as automatically voidable would falsify the boundary this paper draws. Finally, if concentration by subtraction against appointed offices is a general pattern rather than a San Luis-specific anomaly, comparable instruments should be discoverable in other provinces with documented multi-decade single-family or single-coalition dominance; this paper's research did not attempt that search, and treats it, together with the broader provincial survey flagged in the companion paper's Section 8, as a specific direction for future work.

8. Conclusion

Twenty years separated the acts in San Luis from the sentence that finally closed the case against them, and the sentence, when it came, confirmed a mechanism this research programme had already theorized from a different province, a different branch of government, and a different kind of evidence entirely. That is what a novel fact is supposed to do: show up uninvited and fit anyway. It also showed the theory's first application was narrower than the constitutional text it drew on. Article 22 CN never limited itself to elected representatives; it named authorities the Constitution creates, without qualification as to how they take office. The revision offered here is not a concession to a hard case. It is what the text already said.

References

Constitución de la Nación Argentina (1853, reformada 1994), arts. 1, 5, 22, 29, 110.

Diario Judicial. "Comenzaron a tratar la intervención al Poder Judicial de San Luis." October 8, 2018.

Fiscales.gob.ar. "San Luis: la Corte Suprema de Justicia de la Nación dejó firme la condena a un exministro y otro exfuncionario provincial por coerción a jueces." December 10, 2025.

Infobae. "Confirmaron el procesamiento de ex funcionarios de San Luis que obligaban a candidatos a jueces a firmar sus renunciaciones como condición para nombrarlos." December 23, 2020.

- Infobae. "La Corte Suprema le puso un freno a Insfrán: declaró inconstitucional la reelección indefinida en Formosa." December 19, 2024.
- Infobae. "Nombraban jueces y les hacían firmar sus renunciaciones para condicionarlos: a casi 20 años, condenaron a ex funcionarios de San Luis." August 27, 2023.
- Lakatos, I. (1978). *The Methodology of Scientific Research Programmes*. Cambridge University Press.
- La Nación. "Condenaron a un ministro de Rodríguez Saá por presionar a jueces." February 12, 2021.
- La Nación. "Dos exministros de Alberto Rodríguez Saa irán presos por presionar a jueces para que firmen su renuncia antes de asumir." November 29, 2025.
- La Política Online. "Santiago del Estero: la Corte le frenó la re-reelección a Zamora." December 9, 2013.
- Lerer, I.A. (2026a). *Concentration Without Reception: How Blank Resignations Reproduce the Suma del Poder Público That Article 29 of the Argentine Constitution Cannot Reach*. Zenodo. <https://doi.org/10.5281/zenodo.21711303>
- Lerer, I.A. (2026b). *The Captured Renewer Problem: Tenure-Contingent Constraints on Extraordinary Executive Powers, from the Roman Dictatorship to Article 29 of the Argentine Constitution* (Version 0.2). Zenodo. <https://doi.org/10.5281/zenodo.21459029>
- Ley General de Sociedades 19.550 (Argentina, t.o. 1984), art. 54.
- Poder Ciudadano. "Caso de renunciaciones anticipadas: Dos ex-funcionarios de San Luis condenados por presionar a Jueces." December 5, 2020.
- Popper, K.R. (1959). *The Logic of Scientific Discovery*. Routledge.

AI tools were used as research support during the preparation of this paper: locating sources, extracting information from the existing literature, and reviewing drafts. The thesis, analytical framework, arguments, and conclusions constitute the original contribution of the author. This is an independent research project; all intellectual responsibility for the content rests with the author.

Appendix A: Sourcing Notes

The San Luis criminal proceedings (Sections 1, 3, and 4) are sourced entirely to press coverage (La Nación, Infobae, Diario Judicial, Fiscales.gob.ar, Poder Ciudadano). This paper's research did not retrieve the Tribunal Oral, Cámara Federal de Casación Penal, or Corte Suprema decisions directly. Exact case caratulas and expediente numbers are not verified and should be obtained from the courts' own records before this paper is treated as citation-final.

The figure of "at least eleven magistrates" who signed the instrument comes from a single press account of fiscal Gretel Diamante's criminal complaint and has not been independently cross-checked against the complaint itself.

The Formosa and Santiago del Estero references in Section 2.2 are background drawn from press coverage of the respective Supreme Court proceedings, not from the Court's own published texts; exact case captions are not

confirmed, and neither case's holding is offered here as a direct citation, only as context for the broader jurisprudential pattern under Article 5 CN documented more fully in the companion paper's Section 3.3.

The claim in Sections 5 and 6 that Article 5 CN, read together with the principle of Article 110 CN, supports a structural guarantee of provincial judicial independence is this paper's own interpretive argument. This paper's research did not locate a specific Argentine doctrinal source or judicial holding stating the argument in these terms, and it should be treated as a proposition advanced here, not as settled law.

Appendix B: Claim/Evidence Matrix

Claim	Source	Status	Risk if wrong
Art. 1, 5, 22, 29, 110 CN text	Official congressional and government sources, checked directly	Verified	Low
San Luis 2004 reform placing judicial selection under the Ministerio de Legalidad	Poder Ciudadano (2020), Infobae (2023)	Verified via corroborating secondary sources	Low
At least eleven magistrates signed blank resignations	Single press account of the Diamante complaint	Review	Medium if cited as an exact, independently confirmed count
Ziliotto case facts (denunciation demand, removal, Senate testimony)	La Nación (2021), Infobae (2023), Diario Judicial (2018)	Verified via multiple corroborating sources	Low
Tribunal Oral conviction (6 years, coacción agravada) and partial acquittal on the systemic charge	La Nación, February 12, 2021	Verified via this source; not checked against the tribunal's own text	Medium if the precise legal reasoning is quoted as literal
Cámara Federal de Casación Penal confirmed the sentences, 2023	Infobae, August 27, 2023	Verified via this source; not checked against Casación's own text	Low to medium
CSJN left the conviction firm, November 29, 2025	La Nación (Nov. 29, 2025), Fiscales.gob.ar (Dec. 10, 2025)	Verified via two corroborating sources	Low
Formosa CSJN ruling, December 19, 2024, citing San Juan	Infobae, December 19, 2024	Verified via this source; case caption not independently confirmed	Low to medium
Santiago del Estero CSJN ruling blocking Zamora's third term, 2013	La Política Online, December 9, 2013	Verified via this source; case caption not independently confirmed	Low to medium
Article 22 CN's "representantes y autoridades" text	Official congressional source, checked directly	Verified	Low